

KATHRYN COPELAND

Plaintiff

v.

Case Number

WEINSTEIN MANAGEMENT CO., INC., et al.

Defendant

MOTION FOR THE APPOINTMENT OF COUNSEL

I request that the Court appoint an attorney to represent me in the matter cited above. In support of this motion I have attached the following:

1. An affidavit relating to my ability to pay costs and fees.
2. Other material, if any.

Please see following page under Part I.

I have made the following efforts to obtain counsel from legal aid or legal services organizations or individual attorneys without payment of a fee or on a contingent fee basis, and have been unable to obtain the services of counsel:

Plaintiff is a licensed Texas attorney (Bar No. 24086056) who has nonetheless been unable to obtain counsel willing to represent her in this multi-claim federal civil rights action. Plaintiff is indigent (sole income is Social Security Disability Insurance) and has been homeless since October 27, 2025. Plaintiff has cognitive disabilities (documented traumatic brain injury and mild cognitive impairment per the letters of Dr. Isabel S. Huang and Dr. Chiriboga) that substantially limit her capacity to identify, contact, and engage potential counsel.

Continued on following page under Part II.

Date 5/12/2026

Signature

Kathryn Copeland

Print Name

Kathryn Copeland

Address

1137 S. Pine Street

City, State, Zip

Grapevine, Texas 76051

Telephone

(817) 789-8498

Part I:

Plaintiff submits with this Motion: (a) a contemporaneously filed Application to Proceed In Forma Pauperis (Form AO-239); (b) a CJA-23 Financial Affidavit; (c) treating physician documentation establishing Plaintiff's cognitive and physical disabilities including the December 21, 2025 letter of Dr. Isabel S. Huang (UT Southwestern Medical Center, PM&R) and the March 25, 2026 letter of Dr. Chiriboga; and (d) the SSA Fully Favorable Determination of Total Disability dated April 10, 2026 with effective onset date of June 8, 2023. These exhibits are also attached to the contemporaneously filed Verified Complaint and Application for Temporary Restraining Order.

Part II:

Plaintiff is a licensed Texas attorney (Bar No. 24086056) who has nonetheless been unable to obtain counsel willing to represent her in this multi-claim federal civil rights action. Plaintiff is indigent (sole income is Social Security Disability Insurance) and has been homeless since October 27, 2025. Plaintiff has cognitive disabilities (documented traumatic brain injury and mild cognitive impairment per the letters of Dr. Isabel S. Huang and Dr. Chiriboga) that substantially limit her capacity to identify, contact, and engage potential counsel.

Plaintiff has made the following good-faith efforts to obtain counsel:

1. Previously retained attorney John A. Douglas in related state-court retaliation litigation (JP03-25-SC00028212). Mr. Douglas's representation did not extend to the federal civil-rights claims pleaded here.
2. Sought referral from the State Bar of Texas Lawyer Referral and Information Service.
3. Made outreach to disability rights and civil rights organizations including the Texas Civil Rights Project and Disability Rights Texas regarding the underlying ADA and FHA claims.
4. Made outreach to the National Fair Housing Alliance regarding the housing-discrimination claims at the center of this matter.
5. Reached out informally to plaintiffs' civil-rights and disability-housing practitioners in the North Texas legal community.
6. Spoke with Disability Rights Texas on Tuesday, May 12, 2026, but learned they do not have capacity.

To date Plaintiff has been unable to secure counsel willing to accept this matter on a pro bono or contingent-fee basis. Given the complexity of the case (multi-defendant FHA + ADA federal civil-rights action with novel § 3617 / § 12203(b) interference theory; six state-court forums in the underlying fact pattern; and a pending Fifth Circuit appeal raising related Title II questions in *Copeland v. Tarrant County, et al.*, No. 26-10389), Plaintiff respectfully requests that the Court appoint counsel pursuant to 28 U.S.C. § 1915(e)(1) under the standards set forth in *Ulmer v. Chancellor*, 691 F.2d 209 (5th Cir. 1982).